

SENATE BILL 2486

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 17, Part 4; Title 40 and Title 43, relative to
the "Freedom to Farm Act."

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 43, is amended by adding the following
as a new chapter:

43-41-101. This chapter is known and may be cited as the "Freedom to Farm Act."

43-41-102. As used in this chapter:

(1) "Adult" means a person who is at least twenty-one (21) years of age;

(2) "Cultivate" means to propagate, breed, grow, harvest, dry, cure, or separate
parts of the marijuana plant by manual or mechanical means;

(3) "Flower" or "bud" means the reproductive organs of the marijuana plant and
are parts of the plant, whether trimmed or not, that are harvested and consumed orally
or via inhalation in the plant's natural form;

(4) "Flowering" means, with respect to a marijuana plant, the gametophytic or
reproductive state of a female marijuana plant during which the plant is in a light cycle
intended to produce flowers, trichomes, and cannabinoids characteristic of marijuana;

(5) "Immature plant" or "immature marijuana plant":

(A) Means a marijuana plant that is not a mature plant or a seedling; and

(B) Includes a mother plant kept in a perpetual vegetative state;

(6) "Marijuana":

(A) Means all parts of the plant *Cannabis sativa* L., whether growing or
not; the seeds of the plant; the resin extracted from any part of the plant; and

every compound, manufacture, salt, derivative, mixture, or preparation of the plant, including concentrates and oils, its seeds, or resin;

(B) Does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks, except the resin extracted from the mature stalks, fiber, oil, or cake, or the sterilized seeds of the plant which are incapable of germination; and

(C) Does not include hemp, as defined in § 43-27-101;

(7) "Marijuana plant":

(A) Means rooted marijuana that has a minimum of three (3) leaf sets; and

(B) Includes seedlings, immature marijuana plants, and mature marijuana plants;

(8) "Mature plant" or "mature marijuana plant":

(A) Means a marijuana plant that is in the flowering stage of growth and has developed observable buds or flowers; and

(B) Includes marijuana that is being dried on branches, which may be separated from each other without being deemed separate plants;

(9) "Marijuana trim" means the green, leafy byproduct of trimming marijuana flower and leaves that may be used as smokable marijuana or as an ingredient in edible marijuana products;

(10) "Minor" means a person who is younger than twenty-one (21) years of age;

(11) "Mother plant" means a marijuana plant that is used solely for the taking of seedling cuttings;

(12) "Propagate" means to reproduce marijuana plants through the use of marijuana seeds or cuttings; and

(13) "Seedling" means a marijuana plant or rooted cutting that is:

- (A) Not flowering; and
- (B) Less than eight inches (8 in.) in height; and
- (C) Less than eight inches (8 in.) in width.

43-41-103.

(a) Notwithstanding title 39, chapter 17, part 4, an adult who is registered under § 43-41-104 is authorized to:

(1) Cultivate for personal use not more than fifteen (15) marijuana plants, with not more than five (5) being mature plants, in an area on the premises of the adult's private residence; provided, that the cultivation occurs in a private area that is:

- (A) Equipped with locks that restrict access to the area; and
- (B) Not in public view;

(2) Cure, possess, and store on the premises of the adult's private residence not more than the amount of marijuana produced from plants cultivated on the premises; provided, that:

(A) Not more than sixteen ounces (16 oz.) of dried marijuana trim is authorized on the premises at one (1) time; and

(B) The marijuana trim is stored in a locked container or room;

(3) Use marijuana trim;

(4) Possess and use marijuana-related drug paraphernalia that are used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, storing, ingesting, or inhaling marijuana;

(5) Casually exchange marijuana trim, without remuneration, with another adult on the premises of private residence; provided, that marijuana must remain and be used on the premises; and

(6) Possess and purchase marijuana seeds, including from seed banks, farm supply stores, and agriculture or farmers cooperatives.

(b) This chapter does not authorize the production, possession, or use of resin extracted from any part of the plant or any compound, manufacture, salt, derivative, mixture, or preparation of the plant, including concentrates and oils, and such production, possession, or use remain subject to title 39, chapter 17, part 4.

(c) An adult who is registered under this chapter shall restrict a minor's access to areas of the premises where marijuana is cultivated or stored and shall not cultivate, use, or casually exchange marijuana in the presence of a minor.

43-41-104.

(a) An adult resident of this state who owns their place of residence, or who leases their residence and has express written permission from the property owner, may cultivate, possess, and use marijuana in accordance with § 43-41-103, if registered with the department of agriculture.

(b) The department of agriculture shall establish a process by which an adult described in subsection (a) may register to cultivate, possess, and use marijuana in accordance with § 43-41-103. The department may allow or require a registrant to list other adults residing in the household as part of the registration process. The department shall establish a process for both online and in-person registration and secure verification by law enforcement agencies of valid registration status.

(c) Registration:

(1) Is valid for three (3) years;

(2) Costs one hundred dollars (\$100); and

(3) Is required for only one (1) adult per residence and each adult residing in the household is deemed to be a registered adult for that property for purposes of this chapter.

(d) A registered adult who violates this chapter is subject to permanent revocation of their registration and criminal penalties authorized under title 39, chapter 17, part 4.

43-41-105.

(a) Except as provided in this section, the one-hundred-dollar fee collected pursuant to § 43-41-104(c) must be used only for the administration of the registration process.

(b) By each June 30, beginning in 2027, the department of agriculture shall review its actual and expected fee revenue and expenditures for the registration process for the current fiscal year and the next two (2) fiscal years in order to determine surplus revenue.

(c) Each July 1, beginning in 2027, the department of agriculture shall deposit ninety percent (90%) of the surplus revenue identified in subsection (b) into a fund for the farmers' market support program described in subsection (d).

(d)

(1) A program, known as the farmers' market support program, is created to annually provide grants to support new and existing farmers' markets throughout the state.

(2) The commissioner of agriculture shall promulgate rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to

establish guidelines for evaluating grant requests and determining which farmers' markets will receive grants.

(3) The commissioner of agriculture shall decide which grants to award and disburse the grants to the selected farmers' markets. The total amount of grants awarded each year must be divided among the three (3) grand divisions of the state. The commissioner shall endeavor to expend all funds appropriated to the program each year, and any funds remaining will not revert to the general fund but remain available for expenditure in subsequent fiscal years.

43-41-106.

The department of agriculture is authorized to promulgate rules to effectuate this chapter. Rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. For the promulgation of rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.